

equitable principles in conduct that relates directly to the transaction at issue. (*Fibreboard Paper Products Corp. v. East Bay Union of Machinists Local 1304* (1964) 227 Cal.App.2d 675, 726.) The misconduct must “relate directly to the transaction concerning which the complaint is made” and “pertain to the very subject matter involved” so as to “affect the equitable relations between the litigants.” (*Id.* at p. 729.) Whether the doctrine bars recovery in tort depends on “analogous case law, nature of misconduct, and relationship of misconduct to claimed injuries.” (*Blain v. Doctors Co.* (1990) 222 Cal.App.3d 1048, 1060.)

Here, the FAA does not allege facts to support the defense and, in fact, concedes no such facts are known to the answering defendant at this time.

As such, the demurrer to the seventh affirmative defense is SUSTAINED.

8th A/D (failure to mitigate damages)

The eighth affirmative defense states that “plaintiff “could have mitigated her alleged injuries, damages or losses, if any, by the exercise of reasonable efforts” and “failed and refused to do so.”

The elements of the affirmative defense for failure to mitigate damages are: (i) party has suffered damage resulting from a breach of contract or tort; (ii) the party failed to take reasonable steps and exercise ordinary care to mitigate the damages; and (iii) losses which could have been avoided for which there can be no recovery. (*Valle De Oro Bank v. Gamboa* (1994) 26 Cal. App. 4th 1686, 1691.)

The FAA alleges no facts to constitute the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the eighth affirmative defense is SUSTAINED.

13th A/D (assumption of risk)

The thirteenth affirmative defense states “the plaintiff acted with full knowledge of the probabilities and possibilities of danger” and “invite[d] injury and assumed any and all risks to be reasonably contemplated as incident to [her] said actions and positions.”

As a general rule, persons have a duty to use due care to avoid injury to others, and may be held liable if their careless conduct injures another person. (*Knight v. Jewett* (1992) 3 Cal.4th 296, 315 [citing Civ. Code, § 1714].) The doctrine of primary assumption arises “where, by virtue of the nature of the activity and the parties’ relationship to the activity, the defendant owes no legal duty to protect the plaintiff from the particular risk of harm that caused the injury.” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314-315.)

Here, the FAA alleges no facts to support the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the thirteen affirmative defense is SUSTAINED.

21st A/D (intervening and superseding cause)

The twenty-first affirmative defense states that “the conduct or actions of third parties acted as intervening and superseding forces, thereby cutting off any potential liability on the part of this answering defendant.”

An intervening cause is an independent force that operates after the defendant’s negligent conduct and contributes to the plaintiff’s injuries. (*Ash v. North American Title Co.* (1999) 74 Cal.App.4th 1214, 1223.) An intervening cause becomes a superseding cause only when both the intervening act and the results of the act are unforeseeable. (*Ibid.*) A superseding cause breaks the causal chain between the defendant’s conduct and the plaintiff’s injuries, thereby relieving the defendant from tort liability. (*Ibid.*)

Here, although the FAC alleges that other defendants had prior notice and knowledge of the hazards existing at the